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Loving Arms: Legislative Democrats Launch an Effort to Expand California's Gun-Control Laws

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California already has 109 laws on the books that regulate the use of firearms—more gun-control rules than any other state.

More, it seems, are on the way.

On Feb. 4, a Democratic contingent of lawmakers announced plans to send a raft of new gun-related bills to the governor before the end of the legislative session. The 16 lawmakers were joined by former Arizona Congresswoman Gabrielle Giffords, a gun-control advocate and mass-shooting survivor, along with representatives of the Giffords Law Center to Prevent Gun Violence.

With Democrats now wielding unprecedented political power in Sacramento, including the recent election of Gov. Gavin Newsom, who embraces his role as public enemy of the National Rifle Association, the time seems ripe for a new legislative push.

"We have expanded Democratic majorities in both houses; we have a bright and ambitious new governor with a real track record on this issue," said Assemblyman Jesse Gabriel of Encino, who helped form the "gun violence working group" with Berkeley Assemblywoman Buffy Wicks. "We have a special opportunity here in California to draft some forward-thinking, meaningful, evidence-based legislation that is going to help end mass shootings and end gun violence."

Among the legislative proposals introduced:

AB 165, by Gabriel, which would call for standards to be developed to teach police officers how to temporarily remove guns from people a court has decided pose a threat to themselves or others. That may include those charged with domestic violence. After a man shot and killed 12 people at a Thousand Oaks bar last November, it was reported that police had paid a home visit to the shooter prior to the incident, but decided not to seek a "gun violence restraining order" against him.

A proposal by Wicks (yet to be formally introduced) to boost funding to the California Violence Intervention and Prevention grant program, which funds local programs that strive to reduce gun violence.

A proposal by Assemblyman Mike Gipson from Carson (yet to be formally introduced) that would regulate certain metal components that can be assembled into firearms. A similar bill of his was vetoed by Gov. Jerry Brown last year.

"America's love affair with firearms has got to end," said Sen. Hannah-Beth Jackson from Santa Barbara. "I am hopeful that we are going to take our country back."

But as lawmakers ramp up gun control legislation in California, the judicial winds seem to be blowing against them.

Last month, the U.S. Supreme Court agreed to hear a challenge to a New York City law that strictly limits where gun owners can carry their firearms. That decision was widely taken as a sign that the current court may take a more expansive view of the Second Amendment—perhaps at the expense of California's strict gun control laws.

"We, as a state, have the right to protect our citizens, to protect our kids and to protect our schools and so we think we can accomplish both of those things while being consistent with the second amendment and also doing big

things to prevent gun violence," said Gabriel.

To learn more about gun policy in California, explore CALmatters' in-depth explainer.

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